



MASTER MECHANICAL SERVICES AGREEMENT

SERVICE • PREVENTIVE MAINTENANCE • REPAIR • REPLACEMENT • EMERGENCY RESPONSE

Agreement No.	_____
Effective Date	_____
Customer Legal Name	_____
Service Location(s)	_____
Billing Address	_____
Customer Contact	_____ Phone/Email: _____
Service Provider	Curious Mechanical Services
Provider Address / Contact	_____

IMPORTANT: This master agreement is a customizable business form. Scope, pricing, service levels, licensing information, insurance limits, and jurisdiction-specific provisions should be completed before signature. Legal counsel should review the final form for the company's actual operations and applicable law.

1. AGREEMENT AND INCORPORATED DOCUMENTS

This Master Mechanical Services Agreement ("Agreement") is entered into by Curious Mechanical Services ("Contractor") and the customer identified above ("Customer"). Contractor will provide only the services authorized in a written proposal, work order, service ticket, maintenance schedule, estimate, change order, or other written scope accepted by Customer (each, a "Work Order"). Each Work Order is incorporated into this Agreement. If a Work Order conflicts with this Agreement, the Work Order controls only as to the specific scope, price, schedule, or expressly stated special term; otherwise this Agreement controls.

2. COVERED SERVICES

Subject to Contractor licensing, personnel qualifications, manufacturer requirements, and the applicable Work Order, services may include inspection, diagnostics, troubleshooting, preventive maintenance, repair, replacement, installation, commissioning, start-up, testing, cleaning, adjustment, and related mechanical services for systems such as:



- HVAC and comfort-cooling/heating equipment, including packaged units, split systems, heat pumps, air handlers, rooftop units, fan coils, furnaces, and associated controls.
- Commercial refrigeration and cooling equipment, including condensing units, evaporators, compressors, refrigerant piping, valves, controls, and related components.
- Chilled-water and condenser-water systems, pumps, cooling towers, heat exchangers, hydronic piping, valves, strainers, insulation, and related accessories.
- Ventilation and exhaust systems, fans, belts, bearings, motors, dampers, duct-related mechanical components, and controls.
- Condensate drains, traps, pans, piping, filters, thermostats, sensors, contactors, capacitors, relays, disconnect-related observations, and other components within Contractor's authorized trade scope.
- Other mechanical systems or specialty services specifically described in an accepted Work Order.

Excluded unless expressly stated in a Work Order: architectural/structural work, roofing, fire alarm/sprinkler work, mold or environmental remediation, hazardous-material abatement, engineering/design services requiring a licensed design professional, concealed-condition restoration, and work outside Contractor's lawful license scope.

3. SERVICE PLANS AND PREVENTIVE MAINTENANCE

If Customer purchases recurring maintenance, the applicable Work Order will state equipment covered, visit frequency, included tasks, service window, term, and price. Preventive maintenance is intended to reduce risk and identify observable conditions; it does not guarantee uninterrupted operation, prevent every failure, or extend any manufacturer warranty. Unless expressly included, filters, belts, refrigerant, chemicals, specialty cleaning, crane/rigging, lift rental, after-hours labor, major repairs, and replacement parts are additional.

4. CUSTOMER RESPONSIBILITIES AND ACCESS

- Provide safe, timely, lawful access to the premises and equipment, including keys, escorts, parking, roof access, electrical rooms, mechanical rooms, and required site permissions.
- Disclose known hazards, prior failures, leaks, contamination, asbestos or suspect materials, security rules, permit restrictions, and other conditions that may affect the work.
- Maintain utilities and systems reasonably necessary to perform the work and provide adequate workspace around equipment.
- Protect occupants, inventory, data, and property as appropriate; back up building-control programming or data when applicable.
- Operate and maintain equipment in accordance with manufacturer instructions and promptly report abnormal conditions after service.

5. PRICING, ESTIMATES, TAXES, AND PAYMENT

Prices may be fixed-price, time-and-materials, or recurring fees as stated in the Work Order. Unless expressly included, quoted prices exclude permits, taxes, freight, disposal, parking, tolls, access fees, cranes/lifts, third-party testing, expedited materials, and unforeseen or concealed conditions. Estimates are based on information reasonably available when issued and are not guarantees where scope cannot be determined until diagnostic or exploratory work is performed.



Payment terms: Deposit, if any: _____. Progress billing: _____. Final payment due: _____ days from invoice. Past-due balances may accrue a late charge of the lesser of 1.5% per month or the maximum lawful rate. Customer is responsible for reasonable collection costs and attorneys' fees to the extent permitted by applicable law. Contractor may suspend non-emergency work for overdue undisputed amounts after reasonable notice. Customer must notify Contractor in writing of a good-faith invoice dispute within ten (10) days after receipt, identifying the disputed amount and basis; undisputed amounts remain due.

6. AUTHORIZATION, DIAGNOSTICS, AND CHANGE ORDERS

Customer authorizes reasonable diagnostic steps necessary to determine system condition. Contractor will obtain Customer authorization before performing work materially outside the accepted scope, except where immediate action is reasonably necessary to protect persons or property and Customer's authorized representative cannot be reached. Changes affecting price, materials, or schedule should be documented in a written or electronic change order, service ticket, text, email, or other verifiable authorization.

7. SCHEDULING AND EMERGENCY SERVICE

Service dates and arrival windows are estimates unless a Work Order expressly guarantees a response time. Contractor is not liable for delays caused by weather, emergencies, labor or material shortages, manufacturer delays, site access, utility interruption, governmental action, transportation disruption, force majeure, or other causes beyond reasonable control. Emergency or after-hours service may be billed at premium rates stated in the applicable rate sheet or Work Order. A response-time commitment, if any, is a dispatch/service target and not a guarantee that repairs can be completed during the initial visit.

8. PARTS, MATERIALS, REFRIGERANT, AND SUBSTITUTIONS

Contractor may use new, remanufactured, or equivalent replacement parts only as disclosed or reasonably appropriate to the Work Order. If specified parts are unavailable, Contractor may propose functionally comparable substitutes subject to Customer approval where the substitution is material. Refrigerant recovery, handling, charging, leak repair, and disposal will be performed as required by applicable law. Refrigerant is billable unless expressly included. Customer acknowledges that obsolete or phased-down refrigerants and unavailable components can materially affect repair cost and feasibility.

9. PERMITS, CODES, AND EXISTING CONDITIONS

Contractor will obtain permits only when the Work Order assigns that responsibility. Code upgrades, corrections to pre-existing violations, engineering, inspections, and authority-required changes are additional unless expressly included. Contractor is not responsible for defects, violations, improper prior work, hidden damage, inaccessible components, corrosion, deteriorated piping/wiring, structural deficiencies, or other pre-existing/concealed conditions not caused by Contractor. Discovery of such conditions may require a change order, shutdown, or additional work.

10. EQUIPMENT CONDITION AND NO GUARANTEE OF REMAINING LIFE

Mechanical equipment can fail without advance warning. An inspection, maintenance visit, operational check, or repair reflects observable conditions at the time of service and is not a warranty of future performance or



remaining useful life. Contractor may recommend repair or replacement based on age, condition, efficiency, refrigerant availability, repair history, safety, reliability, or manufacturer support. Customer retains responsibility for deciding whether to repair or replace unless immediate shutdown is required by law or a condition presents an unreasonable safety risk.

11. LIMITED WORKMANSHIP WARRANTY

Unless a Work Order provides a different written warranty, Contractor warrants its repair or installation workmanship for ninety (90) days from substantial completion. Contractor's obligation is limited to correcting covered defective workmanship reported during that period. Parts and equipment are covered only by the applicable manufacturer or supplier warranty, if any, and Contractor does not enlarge those warranties. Warranty coverage excludes normal wear, abuse, misuse, lack of maintenance, power quality issues, water damage, corrosion, acts of nature, unauthorized alterations, pre-existing conditions, refrigerant leaks outside Contractor's repaired area, and failures unrelated to Contractor's workmanship. TO THE MAXIMUM EXTENT PERMITTED BY LAW, ALL OTHER WARRANTIES, EXPRESS OR IMPLIED, INCLUDING IMPLIED WARRANTIES OF MERCHANTABILITY OR FITNESS FOR A PARTICULAR PURPOSE, ARE DISCLAIMED EXCEPT TO THE EXTENT THEY CANNOT LAWFULLY BE DISCLAIMED.

12. SERVICE RECOMMENDATIONS AND DECLINED WORK

Contractor may document recommended repairs, maintenance, monitoring, or replacement. If Customer declines or postpones a recommendation, Customer assumes the risk of continued operation to the extent arising from the known condition, except for loss caused by Contractor's negligence or other liability that cannot lawfully be waived. Contractor may refuse to operate equipment it reasonably believes presents an immediate safety hazard or would violate law, code, manufacturer requirements, or professional practice.

13. DAMAGE, SHUTDOWNS, AND SYSTEM PROTECTION

Customer understands that diagnostic, repair, and replacement work may require temporary shutdowns and that opening aged or deteriorated systems can reveal or worsen latent failures. Contractor will use reasonable care. Contractor is not responsible for damage resulting solely from pre-existing deterioration, hidden defects, inaccessible conditions, or Customer's failure to follow written recommendations. Contractor will promptly notify Customer of material damage caused by Contractor during performance.

14. INSURANCE AND RISK ALLOCATION

Each party will maintain insurance required by applicable law and commercially reasonable for its operations. Customer is responsible for insuring the premises, equipment, business interruption, inventory, and consequential property risks. Contractor will provide certificates of insurance when required by a Work Order or site rules. Nothing in this Agreement waives rights or liabilities that applicable law prohibits the parties from waiving.

15. LIMITATION OF LIABILITY

TO THE MAXIMUM EXTENT PERMITTED BY APPLICABLE LAW, NEITHER PARTY WILL BE LIABLE TO THE OTHER FOR SPECIAL, INCIDENTAL, INDIRECT, EXEMPLARY, PUNITIVE, OR CONSEQUENTIAL DAMAGES,



INCLUDING LOST PROFITS, LOST REVENUE, LOSS OF USE, OR BUSINESS INTERRUPTION, ARISING FROM THIS AGREEMENT, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES. CONTRACTOR'S AGGREGATE LIABILITY ARISING FROM A PARTICULAR WORK ORDER WILL NOT EXCEED THE AMOUNT PAID OR PAYABLE TO CONTRACTOR UNDER THAT WORK ORDER DURING THE TWELVE (12) MONTHS PRECEDING THE EVENT GIVING RISE TO THE CLAIM. THESE LIMITATIONS DO NOT APPLY TO LIABILITY THAT CANNOT LAWFULLY BE LIMITED, OR TO A PARTY'S FRAUD, WILLFUL MISCONDUCT, OR GROSS NEGLIGENCE TO THE EXTENT APPLICABLE LAW SO PROVIDES.

16. INDEMNIFICATION

To the extent permitted by applicable law, each party will indemnify, defend, and hold harmless the other party and its officers, employees, and agents from third-party claims, damages, and reasonable costs to the extent caused by the indemnifying party's negligence, willful misconduct, or material breach of this Agreement. Contractor's indemnity does not extend to the negligence or misconduct of Customer or third parties. Any construction-related indemnity is limited and interpreted to comply with applicable anti-indemnity statutes.

17. HAZARDOUS MATERIALS AND ENVIRONMENTAL CONDITIONS

Contractor is not responsible for identifying or remediating asbestos, lead, mold, biological contamination, hazardous chemicals, or other regulated materials unless specifically licensed and retained to do so. If suspected hazardous material or an unsafe environmental condition is encountered, Contractor may stop work until the condition is evaluated and made safe. Resulting delay and reasonable demobilization/remobilization costs may be charged to Customer unless the condition was caused by Contractor.

18. TERM, RENEWAL, AND TERMINATION

This Agreement begins on the Effective Date and continues until terminated. A recurring maintenance plan has the term and renewal provisions stated in its Work Order. Either party may terminate this master Agreement upon thirty (30) days' written notice, but termination does not cancel an accepted Work Order already in progress unless the parties agree otherwise. Either party may terminate for material breach if the breach is not cured within ten (10) days after written notice, or immediately for unlawful conduct or a serious safety threat. Customer will pay for work performed, authorized materials ordered, restocking/cancellation charges, and reasonable demobilization costs through termination.

19. CANCELLATION AND SPECIAL-ORDER MATERIALS

Appointments should be cancelled or rescheduled at least twenty-four (24) hours in advance. A reasonable trip or cancellation charge may apply where permitted and disclosed. Deposits for custom, nonreturnable, or special-order materials may be nonrefundable to the extent actually committed to those materials, subject to applicable law and supplier return policies.

20. DISPUTE RESOLUTION AND GOVERNING LAW

The parties will first attempt in good faith to resolve disputes through direct discussion between authorized representatives. If unresolved, either party may request nonbinding mediation before filing suit, unless emergency injunctive relief, lien rights, collection rights, or a statutory deadline requires earlier action. This



Agreement is governed by the laws of the State of Florida, without regard to conflict-of-law principles. Venue for litigation will lie in the state or federal courts serving _____ County, Florida, unless applicable law requires otherwise. EACH PARTY WAIVES TRIAL BY JURY TO THE MAXIMUM EXTENT PERMITTED BY LAW. This section does not waive any nonwaivable consumer right or statutory remedy.

21. NOTICES, ELECTRONIC COMMUNICATIONS, AND RECORDS

Notices may be delivered personally, by recognized courier, certified mail, or email to the addresses shown in this Agreement or later designated in writing. Customer authorizes ordinary service communications, estimates, approvals, photographs, service tickets, invoices, and signatures by electronic means. Electronic records and signatures may be used to evidence authorization to the extent permitted by law.

22. PHOTOS, DOCUMENTATION, AND SITE RECORDS

Customer authorizes Contractor to photograph or record equipment, components, deficiencies, nameplates, and work areas for estimating, documentation, warranty, training, quality control, and claim purposes. Contractor will not intentionally publish images that identify Customer or a private residence for advertising without separate permission. Customer may request reasonable copies of service documentation, subject to Contractor's record-retention practices.

23. GENERAL CONTRACT TERMS

- Independent contractor. Contractor is an independent contractor and not Customer's employee, agent, or partner.
- Assignment. Neither party may assign this Agreement without the other party's written consent, except to a successor in connection with a merger, sale, or transfer of substantially all relevant assets, subject to applicable law.
- Subcontractors. Contractor may use properly qualified subcontractors and remains responsible for its contractual obligations.
- Severability. If any provision is unenforceable, it will be modified to the minimum extent necessary or severed, and the remainder will remain effective.
- Waiver. Failure to enforce a provision once is not a waiver of future enforcement.
- Entire agreement. This Agreement and incorporated Work Orders are the complete agreement concerning the covered services and supersede prior discussions on the same subject. Amendments must be in a writing or verifiable electronic record accepted by both parties.
- Counterparts. Signatures may be in counterparts and electronic signatures may be treated as originals to the extent permitted by law.
- No third-party beneficiaries. Except as expressly stated, this Agreement creates no rights in third parties.
- Survival. Payment obligations, warranty limitations, risk allocation, dispute provisions, and other terms that by nature should survive will survive completion or termination.

24. SIGNATURES AND ACCEPTANCE

By signing below, each party acknowledges that it has read, understands, and agrees to this Agreement, including all incorporated proposals, schedules, exhibits, and approved change orders. Each signatory represents that he or she is authorized to bind the party identified below.



CUSTOMER

CURIOUS MECHANICAL SERVICES

Signature: _____

Signature: _____

Printed Name: _____

Printed Name/Title: _____

Title: _____

Date: _____

Date: _____

License No(s), if applicable: _____



EXHIBIT A - SERVICE PLAN / WORK ORDER

Customer / Site	_____
Work Order No.	_____
Plan / Service Type	☐ Preventive Maintenance ☐ Repair ☐ Installation ☐ Emergency ☐ Other
Coverage Term	From _____ to _____
Service Frequency	☐ Monthly ☐ Quarterly ☐ Semiannual ☐ Annual ☐ Other: _____
Normal Service Hours	_____
Emergency Contact	_____
Pricing	_____
Payment Terms	_____

A. EQUIPMENT COVERED

Qty	Equipment / Type	Manufacturer	Model	Serial	Location
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B. INCLUDED TASKS / SCOPE

- Inspect operating condition and visible components within accessible areas.
- Check/record temperatures, pressures, electrical readings, or other operating data where applicable and safe.
- Inspect filters, belts, drains, pans, coils, motors, bearings, controls, valves, piping, and visible refrigerant lines as applicable to covered equipment.
- Clean, adjust, lubricate, tighten, or replace routine items only as specifically included below.
- Document material deficiencies and recommendations.

Additional included tasks / exclusions / consumables:

C. RATES AND ALLOWANCES

Standard Labor Rate \$_____ / hour

After-Hours / Emergency Rate \$_____ / hour

Trip / Diagnostic Charge \$_____

Materials Markup / Pricing Basis _____

Included Consumables _____

Not-to-Exceed Authorization \$_____ without additional approval

D. SPECIAL TERMS / SITE REQUIREMENTS



E. WORK ORDER AUTHORIZATION

Customer authorizes the scope and pricing in this Exhibit subject to the Master Mechanical Services Agreement.

24. SIGNATURES AND ACCEPTANCE

By signing below, each party acknowledges that it has read, understands, and agrees to this Agreement, including all incorporated proposals, schedules, exhibits, and approved change orders. Each signatory represents that he or she is authorized to bind the party identified below.

CUSTOMER	CURIOUS MECHANICAL SERVICES
Signature: _____	Signature: _____
Printed Name: _____	Printed Name/Title: _____
Title: _____	Date: _____
Date: _____	License No(s), if applicable: _____



EXHIBIT B - SERVICE VISIT AUTHORIZATION / COMPLETION

Customer / Site	_____
Date / Technician	_____
Equipment Serviced	_____
Complaint / Requested Service	_____
Arrival / Departure	_____ / _____

A. FINDINGS AND WORK PERFORMED

B. RECOMMENDATIONS / DEFERRED ITEMS

C. CUSTOMER ACKNOWLEDGMENT

Customer acknowledges receipt of the service summary. Signature confirms authorization/receipt of the work described and does not waive any nonwaivable legal right.

Customer Representative: _____ Signature: _____

Date / Time: _____